

24STCV12553 24STCV12553

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MOTION TO COMPEL

The Court

tenders the following tentative decision in the matter Joshua Pannepacker v. John Papadakis, Los Angeles County Superior Court case number 24STCV12553, set for hearing on August 21, 2026. John Papadakis (Defendant) moves for an order compelling the deposition of Harkirat Singh Chahal M.D., Inc's (Harkirat) person most qualified (PMQ), pursuant to Code of Civil Procedure sections 1987.1 and 2025.450. Joshua Pannepacker (Plaintiff) opposes the motion. Defendant's motion is granted in part. The Court does not impose sanctions.

A.

Legal Standard

An oral

deposition must be scheduled for at least 10 days after the service of the deposition notice. (Id., § 2025.270, subd. (a).) "If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document . . . described in the deposition notice." (Id., 2025.450, subd. (a).) The motion shall be accompanied by a meet and confer declaration or declaration stating that the petitioner has contacted the deponent to inquire about their nonappearance. (Id., § 2025.450, subd. (b)(2).)

"If a subpoena

requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Id., § 1987.1, subd. (a).)

B. Discussion

Defendant initially served a notice of deposition on Harkirat's PMQ on April 21, 2026, setting an initial deposition date of June 17, 2026. (Cordi Decl. ¶¶ 4–5.) Harkirat did not respond and failed to have its PMQ appear on that date. (Id. ¶ 7.) On June 18, 2026, Defendant sent Harkirat a letter to meet and confer and reset the deposition. (Id. ¶ 8.) Harkirat responded to that letter on June 23, offering potential deposition dates. (Barkhordar Decl. ¶ 3.) Defendant then filed the present motion on July 9.

Plaintiff offers no explanation for why Harkirat's PMQ failed to attend the deposition and produces no evidence of any objections lodged in advance of June 17. Thus, Harkirat's PMQ's deposition is properly compelled pursuant to Code of Civil Procedure section 2025.450 because they failed to appear for deposition despite not having lodged a valid objection. Accordingly, Defendant's motion is granted.

Defendant seeks sanctions. If a motion under section 2025.450 is granted, the Court must impose a monetary sanction against the deponent or their affiliated party, "unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).) Here, the Court recognizes that Harkirat made various attempts at resolving this matter informally, including by offering alternative deposition dates just 6 days after failing to appear. (Barkhordar Decl. ¶ 3.) It would be unjust to impose sanctions on Harkirat or Plaintiff because they made efforts to provide alternative deposition dates which were ignored by Defendant. Thus, the present motion to compel deposition was likely unnecessary. Accordingly, the Court does not award sanctions because circumstances do not warrant them.

C. Conclusion

The Court grants Defendant's motion in part. Harkirat's PMQ must sit for deposition within the next 30 days. If the parties cannot reach agreement on when the deposition shall be taken, it will be set on September 18, 2026.